

CHAPTER 42
THE TANZANIA PASSPORTS AND
TRAVEL DOCUMENTS ACT
[PRINCIPAL LEGISLATION]
ARRANGEMENT OF SECTIONS

Section Title

PART I
PRELIMINARY PROVISIONS

1. Short title.
2. Interpretation.

PART II
TYPES OF PASSPORTS AND TRAVEL DOCUMENTS

3. Types of passports and travel documents.
4. Passports to remain property of Government.
5. Powers to issue passports and travel documents.
6. Delegation of powers of Commissioner General.
7. Contents of passports.
8. Validity of passports and travel documents.
9. Re-application for new passport.
10. Persons entitled to passports or travel documents.
11. Passport or travel document to be evidence of nationality or domicile of holder.

PART III
PROCEDURE FOR APPLICATION OF PASSPORTS AND
TRAVEL DOCUMENTS

12. Application for passports.
13. Persons to be included in holder's passport.
14. Application for replacement of passport.
15. Lost or stolen passport.
16. Application for travel documents.
17. Revocation of passport and travel documents.
18. Appeals.

PART IV
OFFENCES AND PENALTIES

19. Offences and penalties.

PART V
MISCELLANEOUS PROVISIONS

20. Power to make regulations.
21. Saving provisions.

SCHEDULES

CHAPTER 42

THE TANZANIA PASSPORTS AND TRAVEL DOCUMENTS ACT

An Act to provide for the issuance, control and cancellation of passports and travel documents and to provide for other incidental matters.

[15th September, 2003]

[GN. No. 354 of 2003]

Acts Nos.
20 of 2002
2 of 2010
8 of 2015

PART I PRELIMINARY PROVISIONS

Short title 1. This Act may be cited as the Tanzania Passports and Travel Documents Act.

Interpretation
Act No.
8 of 2015 s. 15 2. In this Act, unless the context otherwise requires-
“Act” means the Tanzania Passports and Travel Documents Act;

Cap. 54 “Commissioner General” means the Commissioner General of Tanzania Immigration Services Department appointed under the Immigration Act;

“competent authority” means the Commissioner General of Immigration Services or an Immigration Officer to whom power to issue passports or travel documents has been delegated, Tanzania diplomatic missions and consular officers abroad vested with power to issue passports or travel documents;

Cap. 54 “Department” means the Tanzania Immigration Services Department established under the Immigration Act;

“Government” means the Government of the United Republic;

“holder” means a holder of passport or travel document issued in terms of this Act;

“migrant trafficking” means illegal trafficking of human beings across borders for purposes of prostitution, employment, business or any other illegal transaction;

“Minister” means the Minister responsible for home affairs;

“passport” means a document in a booklet form issued to a citizen of the United Republic under this Act for the purpose of facilitating his movement across boundaries subject to laws and regulations of the country of destination or transit; and

“travel document” means a document other than a passport issued under this Act.

PART II

TYPES OF PASSPORTS AND TRAVEL DOCUMENTS

Types of
passports and
travel documents

3.-(1) The competent authority shall, subject to the provisions of this Act, have power to issue various types of passports and travel documents.

(2) Types of passports and travel documents issued under subsection (1) shall include-

- (a) ordinary passports;
- (b) service passports;
- (c) diplomatic passports;
- (d) East African passports;
- (e) an emergency travel document;
- (f) certificate of identity; and
- (g) Geneva Convention travel documents.

(3) Notwithstanding the provisions of subsection (2), the Minister may by order published in the *Gazette*, specify any document other than those specified under subsection (2) to be travel document for the purpose of this Act.

Passports to
remain property
of Government

4.-(1) A passport issued pursuant to the provisions of this Act, shall be issued in the name of the President and shall remain to be the property of the Government.

(2) Notwithstanding subsection (1), a passport validly held under the provisions of this Act shall remain in the possession of its holder until its validity expires or until such time as there is lawful cause to believe that it is not desirable to remain in the possession of its holder.

Powers to issue
passports and
travel documents
Act No.
8 of 2015 s. 15

5.—(1) The competent authority that authorise the grant of passports shall be the Commissioner General.

(2) The powers to authorise the grant of passports may be delegated to—

- (a) the Permanent Secretary of the Ministry responsible for foreign affairs in respect of a diplomatic passport; or
- (b) the Permanent Secretary (Establishments) in respect of a service passport.

Delegation
of powers of
Commissioner
General
Act No.
8 of 2015 s. 15

6.—(1) The Commissioner General may, in writing—

- (a) delegate the power to issue passports and travel documents to any immigration officer; or
- (b) delegate his functions relating to the issuance or renewal of passports and travel documents to Tanzania diplomatic missions and consular offices abroad.

Contents of
passports

7. A passport issued under this Act shall contain information regarding matters specified in the First Schedule.

Validity of
passports and
travel documents
Act No.
8 of 2015 s. 15

8.—(1) An ordinary, service or diplomatic passport shall be valid—

- (a) for all countries in the world, except for any countries specified in the passport in respect of which it is stated not to be valid;
- (b) for a period not exceeding five years from the date of issue, but may be renewed for a further period of five years, provided that the total period shall not exceed ten years in aggregate.

(2) A service or diplomatic passport shall be surrendered to the Commissioner General upon the holder ceasing to hold office with respect to which the passport was issued.

(3) An East African passport shall be valid-

- (a) for all member States in the East African Community; and
- (b) for a period not exceeding five years from the date of issue, but may be renewed for a further period of five years, provided that the total period shall not exceed ten years in aggregate.

(4) An emergency travel document shall be valid-

- (a) for the country of destination and other countries of transit; or
- (b) for a single journey for a period stated therein.

(5) A certificate of identity shall be valid for all countries, except where the Commissioner General has prescribed otherwise for a period stated into the certificate.

(6) A Geneva Convention travel document shall be valid for all countries for a period of two years subject to renewal for another two years, provided that, the total period shall not exceed eight years in aggregate.

(7) Without prejudice to the preceding provisions of this section, in a fitting case the Minister may, after consultation with the Minister responsible for foreign affairs, authorise grant of diplomatic passport to business persons or persons who are travelling outside Tanzania in company of the head of Government delegation in an international conference or tour for the purposes of facilitating or promoting or soliciting business opportunities or for carrying on business in trade or industry.

Re-application for
new passport
Act No.
8 of 2015 s. 15

9.-(1) A person whose passport has expired or whose passport cannot be renewed further shall make application to the Commissioner General for a new passport.

(2) The provisions of section 12 shall apply *mutatis mutandis* to an application for a new passport made pursuant to this section.

Persons entitled
to passports or
travel documents

10.—(1) An ordinary passport may be issued to any citizen of the United Republic for the purpose of travelling outside the United Republic.

(2) A service passport may be issued to any citizen of the United Republic who is in the public service or is holding office as respectively specified in the Second Schedule.

(3) A diplomatic passport may be issued to a citizen of the United Republic specified in the Third Schedule.

(4) An East African passport may be issued to a citizen of the United Republic who intends to travel within the East African Community member States.

(5) An emergency travel document may be issued to a citizen of the United Republic—

- (a) who is travelling on an emergency journey and does not fulfil the normal requirements of getting a passport; or
- (b) who is stranded abroad and cannot get a passport or is being deported back home.

(6) A certificate of identity may be issued to a person other than a citizen of the United Republic who cannot obtain a passport from the country of which he is a citizen or does not have citizenship of any country for the purpose of travelling outside the United Republic.

(7) A Geneva Convention travel document may be issued to any refugee granted asylum in the United Republic pursuant to the provisions of the Refugees Act for the purpose of travelling abroad.

Cap. 37

Passport or
travel document
to be evidence
of nationality
or domicile of
holder

11. The holding of a passport or travel document shall be *prima facie* evidence of the nationality or domicile of the holder and of his entitlement to state protection:

Provided that, a mere possession of a passport or travel document shall not operate as a bar to inquiry, investigation or judicial proceedings against the holder if there are reasons to warrant such a cause of action.

PART III

PROCEDURE FOR APPLICATION OF PASSPORTS AND TRAVEL DOCUMENTS

Application for
passports
Act No.
8 of 2015 s. 15

12.—(1) A person who intends to travel outside the United Republic may submit application for a passport to the Commissioner General in a manner as may be prescribed.

(2) An application made under subsection (1) shall be accompanied by-

- (a) a birth certificate or an affidavit of birth or a certificate of naturalisation of the applicant;
- (b) a birth certificate, or an affidavit of birth or certificate of naturalisation of the applicant's parent or parents;
- (c) recent, clear and un-mounted passport size photographs as may be directed by the issuing authority; and
- (d) in case of an applicant who is below the age of sixteen years, the parent's or legal guardian's written consent.

(3) An affidavit regarding the birth certificate referred to in paragraph (a) of subsection (2) shall be stated or sworn by-

- (a) a parent or legal guardian;
- (b) a person who was present at the place of birth when the applicant was born and who is not less than five years above the age of the applicant; or
- (c) the applicant's close relative who was informed of the applicant's birth by the parents.

(4) Notwithstanding subsections (2) and (3), the Commissioner General may require the applicant of a passport to produce evidence of citizenship of his parent.

Persons to be
included in
holder's passport

13.—(1) The following persons may be included in the holder's passport:

- (a) a holder's child, step child or adopted child under the age of sixteen; or
- (b) any minor child with the consent of his parent or legal guardian if he is a citizen of the United Republic.

(2) A person included in the passport in accordance with subsection (1) of this section shall not use the passport for travelling unless accompanied by the holder.

Application for
replacement of
passport
Act No.
8 of 2015 s. 15

14.—(1) Where a holder's passport is full or damaged in such a way that it requires to be replaced, the holder of such passport may apply for a new passport to the Commissioner General in the prescribed manner.

(2) A person shall not be issued with a new passport under subsection (1) unless the application is accompanied by the previous passport.

(3) The passport which was previously used and cannot be used any further shall immediately after the issuance of new passport be cancelled by the Commissioner General.

Lost or stolen
passport

15.—(1) Where a passport is lost, stolen or severely damaged, an application for a replacement shall be accompanied by a sworn declaration of the circumstances surrounding the loss, theft or damage of the passport and authority to whom the loss, theft or damage was reported.

(2) The Commissioner General may, where a passport is lost, stolen or damaged outside the United Republic, issue or cause to be issued a passport or travel document to the applicant without the applicant having to comply with the provisions of this section, except that, the applicant concerned shall be satisfactorily proved to be a citizen of the United Republic.

Application for
travel documents
Act No.
8 of 2015 s. 15

16. A person who is desirous of being issued with-

- (a) an emergency travel document;
- (b) a certificate of identity; or
- (c) a Geneva Convention travel document,

shall apply to the Commissioner General in the manner as may be prescribed.

Revocation of
passport and
travel documents
Act No.
8 of 2015 s. 15

17.—(1) The Commissioner General may, where-

- (a) the holder of a passport or travel document permits another person to use his passport or travel document;

- (b) the holder of a passport or travel document has been deported or repatriated to the United Republic at the expense of the Government;
 - (c) the holder has ceased to be a citizen of the United Republic;
 - (d) the holder engages in illicit drug trafficking, money laundering, migrant trafficking, terrorist act or any other illegal transaction; and
 - (e) it is in the national interest or national security,
- at any time revoke the passport or travel document granted or issued to the holder.

(2) The Commissioner General shall, on revoking the passport or travel document in accordance with subsection (1) of this section, inform the holder in writing, requiring him to surrender the passport or travel document and of the reasons for revoking such passport or travel document.

(3) The holder shall, on receipt of the revocation letter from the Commissioner General, surrender within the period stated therein, the passport or travel document to an authorised agent of the Government stated in the letter.

Appeals

18. A person aggrieved by the decision of the competent authority to refuse an application, revocation or cancellation of passport or travel document may appeal to the Minister whose decision shall be final.

PART IV OFFENCES AND PENALTIES

Offences and
penalties
Act No.
8 of 2015 s. 15

19.—(1) A person shall not obtain a passport or travel document in contravention of the provisions of this Act.

(2) A person who—

- (a) for the purposes of this Act, makes or causes to be made a false statement, or declaration;

- (b) having come into possession of a passport or travel document which belongs to another person-
 - (i) presents it as his; or
 - (ii) fails to hand it over to the holder, the Department or any other Government agent;
- (c) forges, alters, defaces, destroys, damages or allows to forge, alter, deface, destroy or damage a passport or travel document;
- (d) allows his or any other passport or travel document in his possession to be used for an unlawful purpose;
- (e) is found in possession of a forged, altered, defaced, destroyed or damaged passport or travel document;
- (f) refuses or fails to return the passport or travel document to the department after he has been required to do so in terms of section 17(2);
- (g) wilfully issues or causes to be issued a passport or travel document to any person who is not entitled to a passport or travel document under this Act;
- (h) without any lawful authority is found to be in possession of more than one passport or travel document of the same type;
- (i) without any lawful authority makes, prints or binds any material, whether in part or in whole, with intent to produce a passport or any travel document;
- (j) presents a forged, altered or false documents for the purposes of obtaining a passport or travel document; or
- (k) fails or refuses to surrender to the Commissioner General a service or a diplomatic passport as required under section 8,

commits an offence, and on conviction, shall be liable, to a fine of not less than two hundred thousand shillings and not exceeding one million shillings or to imprisonment for a term of not less than two years or to both.

PART V

MISCELLANEOUS PROVISIONS

Power to make
regulations

20. The Minister may make regulations for the efficient carrying into effect of the provisions of this Act and without prejudice to the generality of this provision, the Minister may make regulations prescribing-

- (a) passport and travel document issuing procedures;
- (b) the period of validity of travel documents;
- (c) any specified issuing centres;
- (d) application procedures under this Act;
- (e) procedures for renewal of passports or travel documents;
- (f) procedures for revocation of passports or travel documents;
- (g) various forms to be used under this Act; and
- (h) any other matter which needs to be prescribed under this Act.

Saving provisions

21.-(1) Notwithstanding the provisions of this Act, any person lawfully issued with a passport or travel document according to the rules, circulars and procedures in force before the enactment of this Act, shall be deemed to have been issued the passport or travel document pursuant to the provisions of this Act.

(2) Without prejudice to subsection (1), any passport or travel document which was revoked or cancelled under the rules, circulars or procedures in force prior to the enactment of this Act, shall be deemed to have been revoked or cancelled under the provisions of this Act.

FIRST SCHEDULE

(Made under section 7)

CONTENTS OF PASSPORTS

- (a) Full names of holder.
- (b) Nationality of holder.
- (c) Date and place of birth of holder.
- (d) Sex of holder.
- (e) Photograph of holder.
- (f) Signature of holder.
- (g) The date and place of issue.
- (h) Expiry date of passport.
- (i) Signature of person issuing the passport.
- (j) Passport number.
- (k) Profession or occupation.
- (l) Height.
- (m) Colour of eyes.
- (n) Special peculiarities.
- (o) Permanent address.
- (p) Pages.

Act No.
2 of 2010 s. 29

SECOND SCHEDULE

(Made under section 10(2))

PERSONS ENTITLED TO SERVICE PASSPORTS

- (a) Regional Commissioner.
- (b) Regional Administrative Officer.
- (c) District Commissioner.
- (d) Registrar Court of Appeal or High Court.
- (e) Director of Public Prosecutions.
- (f) Chief Parliamentary Draftsman.
- (g) State Attorney as defined under the Attorney General (Discharge of Duties) Act.
- (h) Director or Commissioner in Government Ministries or Institutions.
- (i) Commissioner in any Government Commission.
- (j) TPDF officers of a rank of Colonel or Brigadier General.
- (k) Personal Assistant and Advisor to President, Vice President, President of Zanzibar or Prime Minister.
- (l) Deputy Commissioner of Prisons.
- (m) Senior Assistant Commissioner of Prisons.
- (n) Assistant Commissioner of Prisons.

Cap. 268

- (o) Deputy Commissioner of Police.
- (p) Senior Assistant Commissioner of Police.
- (q) Assistant Commissioner of Police.
- (r) Deputy Commissioner General of Immigration.
- (s) Senior Assistant Commissioner of Immigration.
- (t) Assistant Commissioner.
- (u) Senior public officers.

THIRD SCHEDULE

(Made under section 10(3))

PERSONS ENTITLED TO DIPLOMATIC PASSPORTS

- (a) President of the United Republic.
- (b) Vice President.
- (c) President of Zanzibar.
- (d) Prime Minister.
- (e) Chief Minister.
- (f) Minister and Deputy Minister.
- (g) Speaker of the National Assembly or the House of Representatives of Zanzibar.
- (h) Deputy Speaker.
- (i) Member of Parliament and member of the House of Representatives.
- (j) The Chief Justice.
- (k) Justice of Appeal.
- (l) Judge of the High Court.
- (m) Attorney General.
- (n) Ambassador.
- (o) Chief Secretary.
- (p) Deputy Attorney General.
- (q) Permanent Secretary and Deputy Permanent Secretary.
- (r) Clerk of the National Assembly.
- (s) Chief of Defence Forces.
- (t) TPDF officers of the rank of or above Major General.
- (u) Inspector General of Police.
- (v) Commissioner of Police.
- (w) Commissioner General of Prisons.
- (x) Commissioner of Prisons.
- (y) Governor.
- (z) Deputy Governor.

- (aa) Aide-de-Camp to the President.
 - (bb) Aide-de-Camp to the Vice-President.
 - (cc) Aide-de-Camp to the President of Zanzibar.
 - (dd) Aide-de-Camp to the Prime Minister.
 - (ee) Aide-de-Camp to the Chief Minister.
 - (ff) Registrar of Political Parties.
 - (gg) Chairman to any Government Commission.
 - (hh) Director General of Tanzania Intelligence Security Services (TISS).
 - (ii) Director General of the Prevention and Combating of Corruption Bureau (PCCB).
 - (jj) Commissioner General of Immigration Services.
 - (kk) Foreign service officer.
 - (ll) Former President.
 - (mm) Former Vice-President.
 - (nn) Former President of Zanzibar.
 - (oo) Former Prime Minister.
 - (pp) Former Chief Minister.
 - (qq) Former Speaker of the National Assembly or House of Representatives of Zanzibar.
 - (rr) Former Deputy Speaker.
 - (ss) Former Chief Justice.
 - (tt) Former Chief Secretary.
 - (uu) Former Attorney General.
 - (vv) Former Justice of Appeal.
 - (ww) Former Judge of the High Court.
 - (xx) Former Chief of Defence Forces.
 - (yy) Former Commissioner of Police.
 - (zz) Former Inspector General of Police.
 - (aaa) Former Commissioner General of Prisons.
 - (bbb) Former Director General of Prevention and Combating of Corruption Bureau (PCCB).
 - (ccc) Former Director General of Tanzania Intelligence Security Services (TISS).
 - (ddd) Heads of religious organisations as the Commissioner General of Immigration Services may determine.
-

